IN THE MAGISTRATE'S COURT FOR THE DISTRICT OF JOHANNESBURG

HELD AT JOHANNESBURG CENTRAL

CASE NO: CCJ/01/2025

In the matter between:

BEN KEETON (Plaintiff)

and

SARAH JACOBS (Defendant)

INDEX: TECHNICAL DEFENSE & COUNTER-LITIGATION BUNDLE

Item	Description	Page No.
1.	**Notice of Intention to Defend**	1
2.	**Notice of Exception (Magistrates' Court Rule 19(1))**	2-4
3.	**Defendant's Special Plea (Jurisdiction)**	5
4.	**Defendant's Plea (Merits)**	6-8
5.	**Defendant's Counterclaim (Rule 20)**	9-11
6.	**Annexure "A": ProFix Auto Repairs Quotation (Quantum)**	12

IN THE MAGISTRATES COURT FOR THE DISTRICT OF JOHANNESBURG
HELD AT JOHANNESBURG CENTRAL

CASE NUMBER: CCJ/01/2025

In the matter between

BEN KEETON **PLAINTIFF**

ID: 730206 0549 082

And

SARAH JACOBS **DEFENDANT**

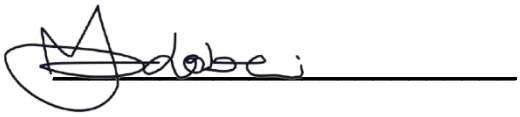
ID: 891222 0460 584

NOTICE OF INTENTION TO DEFEND

KINDLY TAKE NOTICE THAT the Defendant hereby gives notice of her intention to defend the action brought against her.

KINDLY TAKE NOTICE THAT The Defendant has appointed PHUMI & PARTNERS INC as her attorneys of record and she will accept service of all documents and notices in this matter at electronically at pumezandobeni@gmail.com and at the below address.

SIGNED AT JOHANNESBURG ON THE 11TH DAY OF JUNE 2025.



PUMEZA NDOBENI

(Attorney with Right of Appearance

in the High Court)

PHUMI AND PARTNERS INC

ATTORNEYS FOR THE DEFENDANT

West Tower

4th Floor

Nelson Mandela Square

Sandown

Johannesburg

TEL: 010 123 4567

REF: JACOBS01

Email: pumezandobeni@gmail.com

moagimay@gmail.com

TO: THE CLERK OF THE ABOVE HONOURABLE COURT

JOHANNESBURG

AND TO:

PLAINTIFF'S ATTORNEYS

NINES ATTORNEYS

(SERVICE BY EMAIL)

IN THE MAGISTRATES COURT FOR THE DISTRICT OF JOHANNESBURG

HELD AT JOHANNESBURG

Case no: **CCJ/01/2025**

In the matter between:

BEN KEETON Plaintiff

ID: 730206 0549 082

And

SARAH JACOBS Defendant

ID: 891222 046 0584

NOTICE OF EXCEPTION IN TERMS OF RULE 19(1)

KINDLY TAKE NOTICE that the Defendant hereby notifies the Plaintiff that the Plaintiff's particulars of claim are vague and embarrassing and/or lack averments necessary to sustain a cause of action, for the following reasons:

1. The Plaintiff failed to comply with the prescripts of **Rule 19(1)(a)** of the Magistrates Courts Rules in that the particulars of claim are vague and embarrassing and lack sufficient detail to sustain a cause of action, particularly as no annexures referred to in the particulars — including Annexure 'BK' (quotation for damages) have not been attached. This omission renders the pleading vague

and leaves the Defendant unable to assess the quantum of the alleged damages or plead meaningfully thereto

2. The Plaintiff has failed to annex any supporting documentation to establish ownership of the vehicle, proof of damages, or even a copy of the Plaintiff's identity document as alleged in paragraph 1 of the particulars

3. The Plaintiff alleges a motor vehicle collision caused by the Defendant's negligence but fails to plead with sufficient particularity the factual basis for the claim, including specific allegations of time, direction of travel, road layout, or visibility, which are necessary to sustain a cause of action based on delict.

4. The Plaintiff has failed to plead jurisdiction in accordance with Rule 5 of the Magistrates' Courts Rules. The Plaintiff merely alleges that "the course of action took place in Johannesburg" without stating sufficient factual grounds to establish that the court has jurisdiction in terms of section 28 of the Magistrates' Courts Act 32 of 1944. The Plaintiff does not allege facts such as the Defendant's residence, place of employment, or where the whole cause of action arose with sufficient clarity.

5. The particulars of claim are contradictory and internally inconsistent. While the Plaintiff alleges, he was stationary at a traffic light and then turned right, he simultaneously alleges that the Defendant drove through a red light at an excessive speed, but no precise sequence of events is pleaded to support these conclusions.

6. As a result, the Defendant is unable to plead meaningfully to the Plaintiff's claim and is prejudiced by the lack of clarity, incomplete documents, and the failure to properly set out the cause of action in coherent terms.

WHEREFORE the Defendant prays that the Plaintiffs particulars of claim be exempted with costs of suit, alternatively that the Plaintiff be ordered to amend the particulars of claim.

KINDLY TAKE FURTHER NOTICE that should the abovementioned causes of complaint not be removed within **fifteen (15) days** from the date of service hereof, the Defendant shall proceed to deliver an **exception** in terms of Rule 19(1)(c) without further notice.

Thus SIGNED AND DATED at _____ on this the __ day of _____ 20__.

_____

S DADA

Attorneys for the Applicant

PHUMI AND PARTNERS INC.

Johannesburg

Tel: (011) 328 2932

Email: phumi@----------

Ref: -------

TO: THE CLERK OF THE ABOVE HONOURABLE COURT OF JOHANNESBURG

BY EMAIL

AND TO:

NINES ATTORNEYS INC.

Attorneys for the Plaintiff

30 Voortrekker Street

Braamfontien,2271

Johannesburg

Tel: 011 315 3478

Email: -----

Ref:----

BY EMAIL

IN THE MAGISTRATES COURT FOR THE DISTRICT OF JOHANNESBURG HELD AT JOHANNESBURG CENTRAL

Case No.: CCJ/01/2025

In the matter between

BEN KEETON **PLAINTIFF**

ID: 730206 0549 082

and

SARAH JACOBS **DEFENDANT**

ID: 891222 0460 584

DEFENDANT'S PLEA

AD PARAGRAPH 3

2. The Defendant pleads that while the motor vehicle collision is alleged to have occurred in Johannesburg, the Plaintiff is put to the proof that this Honourable Court has jurisdiction to hear the matter.

AD PARAGRAPH 4

3. The Defendant bears no knowledge of the allegation contained herein and cannot admit or deny same and accordingly puts the plaintiff to the proof thereof.

AD PARAGRAPH 5

4. The Defendant admits that a motor vehicle collision occurred on or about 15 April 2025 in the Johannesburg CBD between the Plaintiff's vehicle and the Defendant's vehicle, a grey Renault Clio 2016 model with registration number KVC 149 GP. The Defendant admits that she was in control of the said vehicle at the time of the collision and was the registered owner thereof.

AD PARAGRAPH 6

The contents of these paragraphs are denied as if specifically traversed and plaintiff is put to the proof thereof. The Defendant avers that;

On or about 15 April 2025, at or about 14h45, the Defendant was driving northbound towards Kruis Street in Johannesburg CBD;

The Defendant entered the intersection on corner Commissioner Street & Kruis Street as the traffic light turned orange and proceeded northbound, as she still had right of way, when a **White Mercedes Benz C200 2014 model**, with registration number**: LLP 260 GP** turned right into the intersection and collided with the front left side of the motor vehicle.

The Plaintiff did not wait for the Defendant to pass before turning into the intersection.

The Defendant's motor vehicle sustained damages to the front bumper, headlights and bonnet.

AD PARAGRAPH 7

The contents of these paragraphs are denied as if specifically traversed and plaintiff is put to the proof thereof. The Defendant avers that the Plaintiff was negligent in on or more of the following respects:

He drove an excessive speed;

He did not stop nor wait for the green light instead proceeded albeit the traffic light was still orange;

He failed to keep a proper lookout;

He failed to apply brakes of the vehicle he was driving effectively or at all;

He failed to drive the vehicle with the necessary skill expected of a reasonable driver in the circumstances; and/or

He failed to avoid a collision when by exercise of reasonable care, he could or have done so;

AD PARAGRAPH 8 & 9

7. The Defendant admits insofar as the demand, the remainder of the contents therein are denied. The defendant pleads that he was in no respect negligent and can consequently not be held liable for plaintiff's damages, which damages he lawfully refuses to pay.

The Defendant denies that the Plaintiff is entitled to any of the relief sought herein and places the Plaintiff to the proof thereof.

WHEREFORE the Defendant prays that the Plaintiff's claim be dismissed with costs.

IN THE MAGISTRATES COURT FOR THE DISTRICT OF JOHANNESBURG HELD AT JOHANNESBURG CENTRAL

CASE NUMBER: CCJ/01/2025

In the matter between

BEN KEETON **PLAINTIFF**

ID: 730206 0549 082

And

SARAH JACOBS **DEFENDANT**

ID: 891222 0460 584

DEFENDANT'S COUNTERCLAIM

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1. For the sake of convenience, the parties are referred to herein as they appear in the Plaintiff's particulars of claim.

2. Paragraphs 1 and 2 of plaintiff's particulars of claim are referred to as if specifically incorporated herein

3. The above-mentioned Honourable Court has Jurisdiction to hear this matter as the cause of action arose within its area of jurisdiction.

4. At all relevant times hereto the Defendant was the owner of a **grey 2016 Renault Clio** with registration number **KVC 149 GP** ("the motor vehicle"), and accordingly has the necessary *locus standi* to institute this counterclaim in respect of the damages suffered. A copy of the proof of ownership is annexed hereto and marked **ANNEXURE "SJ01"**.

   4.1. On or about 15 April 2025, at or about 14h45, the Defendant was driving the motor vehicle northbound towards Kruis Street in the Johannesburg CBD, and lawfully entered the

intersection at the corner of Commissioner Street and Kruis Street as the traffic light turned orange.

4.2. The Defendant still had the right of way and accordingly proceeded to drive through the intersection in a northbound direction when a white 2014 Mercedes-Benz C200, bearing registration number LLP 260 GP, driven by the Plaintiff, turned right into the intersection at the approximate speed of 100km/hr and collided with the front left side of the Defendant's motor vehicle.

4.3. The Plaintiff entered the intersection without ensuring that it was safe first to do so. He failed to yield or reduce his speed. Had the Plaintiff either waited for his right of way or reduced his speed, the collision with the Defendant could have been avoided. Find attached the accident report marked as **ANNEXURE "SJ02".**

4.4. As a result of the Plaintiff's negligence the Defendant's motor vehicle sustained damages to the front bumper, headlights and bonnet.

5. The Plaintiff was solely negligent for the cause of the above-mentioned collision in one or more of the following respects:

5.1. He drove an excessive speed;
5.2. He did not stop nor wait for the green light instead proceeded albeit the robot was still showing yellow light;
5.3. He failed to keep a proper lookout;
5.4. He failed to apply brakes of the vehicle he was driving effectively or at all;
5.5. He failed to drive the vehicle with the necessary skill expected of a reasonable driver in the circumstances; and/or
5.6. He failed to avoid a collision when by exercise of reasonable care, he could or have done so;

6. As a result of the said collision, the Defendant's motor vehicle sustained damage. The Defendant has suffered damages in the amount of **R38,000.00** (**Thirty-Eight Thousand Rand**), being a fair and reasonable amount required to restore the vehicle to its pre-collision condition. A copy of the quotation is annexed hereto and marked **Annexure "SJ103"**.

7. In further support of the damages sustained, the Defendant annexes hereto a photograph depicting the physical damage to the motor vehicle caused by the collision. The photograph accurately reflects the condition of the vehicle post-collision. The said photograph is annexed hereto and marked **Annexure "SJ04"**.

8. In addition, a bystander who witnessed the collision provided the Defendant with a photograph taken shortly before the collision, depicting the Plaintiff's vehicle and its speed. This image corroborates the Defendant's version of events. A copy of the said photograph is annexed hereto and marked **Annexure "SJ05"**.

9. Despite proper and lawful demand Plaintiff fails and/or refuses to pay to Defendant the aforementioned amount or any part thereof.

10. **WHEREFORE** the Plaintiff prays for judgment against the Defendant as follows:

10.1. Payment of damages in the amount **R38 000,00 (Thirty-eight thousand rand).**

10.2. Interest at 11.5% per annum from date of issue of summons

10.3. Cost of suit

10.4. Further/alternative relief.

WHEREFORE the Defendant prays that the Plaintiff's claim be dismissed and that judgment be granted in favour of the Defendant on the terms set out above.

SIGNED AT JOHANNESBURG ON THE 11TH DAY OF JUNE 2025.

PUMEZA NDOBENI
(Attorney with Right of Appearance in the High Court)
PHUMI AND PARTNERS INC
ATTORNEYS FOR THE DEFENDANT
West Tower
4th Floor
Nelson Mandela Square
Sandown
Johannesburg
TEL: 010 123 4567

REF: JACOBS01
Email: pumezandobeni@gmail.com
moagimay@gmail.com

TO: THE CLERK OF THE ABOVE HONOURABLE COURT
JOHANNESBURG

AND TO:
PLAINTIFF'S ATTORNEYS
NINES ATTORNEYS

(SERVICE BY EMAIL)

ANNEXURE
"SJ01"

NATIS

PROOF OF OWNERSHIP

REGISTERED OWNER
SARAH JACOBS
MAKE/MODEL
RENAULT CLIO 2016
VIN VF1R98BD555452390
REGISTRATION NUMBER
KVC149 GP
DATE OF REGISTRATION 2022-03-14
GAUTENG DEPARTMENT OF TRANSPORT

ANNEXURE "SJ02"

SAPS ACCIDENT REPORT FORM – AR FORM

SAPS Reference Number: JB-15/04/2025-023

Date of Report: 16 April 2025

Police Station: Johannesburg Central

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1. DETAILS OF ACCIDENT

Date: 15 April 2025

Time: 14:45

Location: Intersection of Commissioner & Kruis Street, Johannesburg CBD

Weather Conditions: Clear

Road Surface: Dry

Traffic Controls: Traffic Lights

Type of Road: Urban, tarred

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2. VEHICLE A :SARAH JACOBS

Make & Model: Renault Clio, 2016

Colour: Grey

Reg. Number: KVC 149 GP

Owner: Sarah Jacobs

License Code: B

Insurance: Insured with OUTsurance

Policy number: 0004437

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3. VEHICLE B (PLAINTIFF – BEN KEETON)

Make & Model: Mercedes Benz C200, 2014

Colour: White

Reg. Number: GP 66 BK GP

Owner: Ben Keeton

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4. DRIVER STATEMENT (SARAH JACOBS)

"I was travelling northbound and entered the intersection on an orange light. As I proceeded through, the white Mercedes turned right into the intersection and collided with the front of my car. I believe the driver did not wait for my vehicle to pass before turning. I sustained damage to the front bumper and bonnet."

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5. DAMAGES TO VEHICLE A:

Bumper, bonnet, and headlights damaged

Estimated damage: R38,

000

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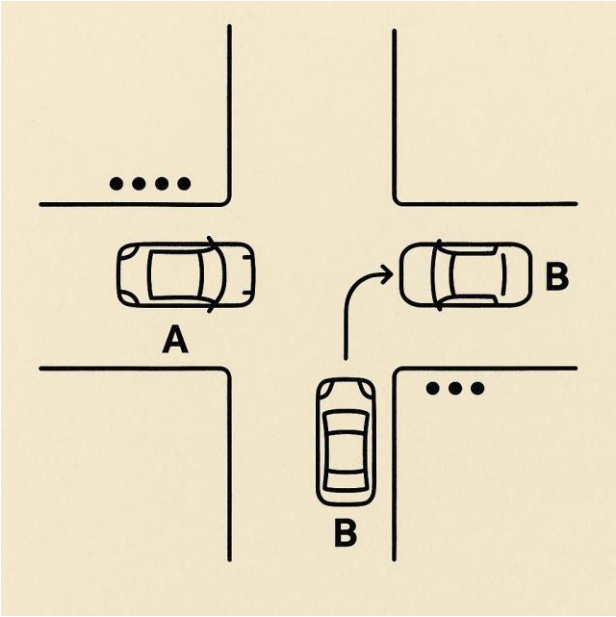
6. WITNESSES (if any):

None at the Scene

_____

7. SKETCH PLAN



_____

8. OFFICER'S NAME:
Const. T. Mkhize

Badge Number: 104589

Signature: _____mkizhe_____

Date: 16/04/2025

ANNEXURE "SJ03"

ProFix Auto Repairs
123 Main Street
Johannesburg, 2000
Phone: +27 11 123 4567
Email: info@profixauto.co.za
Website: www.profixauto.co.za

Panel Beater Quotation

Date: May 1, 2025
Location: Johannesburg, South Africa

Customer Details:

Name: Sarah Jacobs
Address: 156 Linden Avenue Ormonde, Johannesburg South.
Contact Number: 083 574 8521

Vehicle Details:

Make: Renault
Model: Clio 2024
Color: Grey
Registration Number: KVC 149 GP

Scope of Work:

- Front left-hand side panel repair and replacement
- Dent removal and panel straightening
- Painting to match existing color
- Reassembly and quality inspection

Cost Breakdown:

Item	**Description**	**Cost (ZAR)**
Parts		
Front Left Panel	OEM replacement panel	12,500
Front Bumper	Replacement	4,500
Headlight Assembly	Replacement	3,000
Other small parts (clips, screws, etc.)	Fasteners and minor components	1,000
Subtotal for Parts		**21,000**
Labour		

Panel removal and fitting	Disassembly and reassembly	10,000
Bodywork and dent repair	Straightening and prepping	4,000
Painting and finishing	Color matching, painting, clear coat	3,000
Subtotal for Labour		**17,000**
Total Estimated Cost		**38,000**

Grand Total:

38,000 ZAR

Terms & Conditions:

- Quotation valid for 30 days from the date of issue.
- Any additional repairs or damages found during work will be communicated and billed separately.
- Full payment due upon completion.
- Warranty on repairs: 3 months or 5,000 km, whichever comes first.

Estimated Completion Date:

May 31, 2025

Thank you for choosing **ProFix Auto Repairs**. We look forward to restoring your vehicle to top condition.

Please contact us at **+27 11 123 4567** or info@profixauto.co.za to confirm or for further assistance.